

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EQUASIA LOCKETT,

Plaintiff,

-against-

CITY OF NEW YORK AND
P.O. JOHN DOE,

Defendants
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates BRONX
County as the place of trial.

The basis of venue is:
Situs of Tort

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Eastchester, New York
June 24, 2019



Thomas G. Cascione
CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.
Attorneys for Plaintiff
EQUASIA LOCKETT
274 White Plains Road, Suite 6
Eastchester, New York 10709
(914) 961-1263
Our File No. 4086

TO: New York City Law Department
Attorneys for Defendants
CITY OF NEW YORK and
P.O. JOHN DOE
100 Church Street
New York, NY 10007
Claim #2019PI005334

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EQUASIA LOCKETT,

Index No.:

Date Purchased:

Plaintiff(s),

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK AND
P.O. JOHN DOE,

Defendant(s)

-----X

Plaintiff **EQUASIA LOCKETT**, by her attorneys **CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.**, complaining of the Defendant respectfully alleges, upon information and belief:

1. That at the time of the commencement of this action, Plaintiff **EQUASIA LOCKETT** resided in the County of New York, City and State of New York.
2. That the cause of action alleged herein arose in the County of Bronx, City and State of New York.
3. That on December 2, 2018, and at all times herein mentioned, Defendant **CITY OF NEW YORK** was, and still is, a municipal corporation.
4. At all times relevant and material herein, the defendant, P.O. JOHN DOE (true name not presently known) was a member of the New York City Police Department and employee of Defendant, THE CITY OF NEW YORK.

5. That on or before February 26, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiff's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
6. That thereafter a hearing pursuant to General Municipal Law 50(h) was held on May 2, 2019.
7. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

As and For a First Cause of Action for Assault/Excessive Force

8. On December 2, 2018 at approximately 3:00am, the Plaintiff, EQUASIA LOCKETT was lawfully standing outside of Evo Lounge, located 1306 Unionport Road, County of Bronx, State of New York when she was assaulted by members of the NYPD who had responded to a disturbance at the Evo Lounge and then grossly over-reacted when plaintiff protested that they were roughing up and arresting her brother without cause.
9. Plaintiff EQUASIA LOCKETT was arrested, taken into custody and transported to the 43rd precinct where she was issued a summons for Disorderly Conduct without any probable cause or merit.
10. On January 22, 2019 that summons was adjourned in contemplation of dismissal in Bronx

Criminal Court.

11. The excessive use of force in the detention, search and arrest of EQUASIA LOCKETT was unjustified and was not caused by any action on her part. The arrest and detention of EQUASIA LOCKETT on allegations of Disorderly Conduct was without probable cause and was legally unjustifiable.
12. Because of the above stated use of excessive force and physical injury, Plaintiff EQUASIA LOCKETT sustained multiple bodily injuries, suffered emotional and physical damage and was otherwise financially damaged. Plaintiff was caused to have suffered emotional pain, suffering and humiliation.
13. That as a result of the foregoing search, seizure and assault, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

As and for a Second Cause of action for Violations of Civil Rights

14. Plaintiff repeats and re-alleges the allegations set forth in paragraphs "1" through "13" with the same force and effect as if more fully set forth at length herewith.
15. The search, seizure, arrest, and detention of the plaintiff by the Defendants, CITY OF NEW YORK and P.O. JOHN DOE, was under color of state law, statute, ordinance, regulation, custom, or usage as the agents and employees of the NYPD of Defendant CITY OF NEW YORK in violation of plaintiff's rights under 42 USCA §1983 and §1985 as well as the United States Constitution.
16. The search, seizure, arrest and detention of the plaintiff, EQUASIA LOCKETT, by the Defendants, CITY OF NEW YORK and P.O. JOHN DOE, was effected by conspiracy

involving P.O. JOHN DOE and other various members of the NYPD to violate plaintiff's rights under 42 USCA §1985 as well as the United States Constitution.

17. Upon the above facts the defendants did deprive plaintiff of her Civil Rights as guaranteed by the United States.
18. The actions taken by defendant P.O. JOHN DOE and his fellow officers were part of a policy and practice of the defendant CITY OF NEW YORK while policing outside of Evo Lounge.
19. The above described incident between the plaintiff and members of the New York City Police Department was caused in whole or in part by the improper policy and procedures of the NYPD.
20. The above described incident between the plaintiff and members of the New York City Police Department was caused in whole or in part by the failure of the NYPD to train and supervise its officers, including P.O. JOHN DOE.
21. Because of the above stated premises, Plaintiff EQUASIA LOCKETT was caused to have suffered pain, shock, mental anguish; that these injuries and their effects will be permanent; and as a further result of said conduct Plaintiff has been caused to suffer genuine physical injuries and pecuniary losses such as medical expenses, legal fees and travel to court.
22. That as a result of said violation of rights plaintiff suffered actual financial loss.
23. That as a result of the foregoing violation of their Civil Rights, Plaintiff is entitled to the costs and attorney's fees of prosecuting this action and as a result of the foregoing violations of Civil Rights, Plaintiff was damaged in an amount which exceeds the

jurisdiction of all lower Courts.

As and for a Third Cause of action for Punitive Damages

24. Plaintiff repeats and re-alleges the allegations set forth in paragraphs "1" through "23" with the same force and effect as if more fully set forth at length herewith.

25. That as a result of the foregoing intentional and malicious violations of her State and Federal Civil Rights, Plaintiff is entitled to punitive damages against P.O. JOHN DOE in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

WHEREFORE, Plaintiff EQUASIA LOCKETT demands judgment against the Defendants upon the FIRST, SECOND and THIRD causes of action set forth above, jointly and severally, each in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action; together with the costs and disbursements of this action and punitive damages.

Dated: Eastchester, New York
June 24, 2019



Thomas G. Cascione
CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.
Attorneys for Plaintiff
EQUASIA LOCKETT
274 White Plains Road, Suite 6
Eastchester, New York 10709
(914) 961-1263
Our File No. 4086

ATTORNEY'S VERIFICATION

THOMAS G. CASCIONE, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C., attorneys of record for Plaintiff, EQUASIA LOCKETT. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff does not reside in the county wherein I maintain my offices.

DATED: Eastchester, New York
June 24, 2019



THOMAS G. CASCIONE

Index No.
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SUMMONS and VERIFIED COMPLAINT

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